

Calendar Line 5

Case Name: *Spitler v. Match Group, Inc. et al.*
Case No.: 25CV481429

This is a putative class action alleging that defendants Match Group, Inc. and PlentyOfFish Media ULC (collectively, “Defendants”) violated the Unruh Civil Rights Act (Civil Code, § 51 *et seq.*) by providing different services or pricing based on a user’s age. Plaintiff Julianne Spitler now seeks dismissal of her individual and putative class claims without prejudice. The Court previously vacated the April 1, 2026 Case Management Conference and directed counsel to submit a proposed order of dismissal. For the reasons stated below, the Court GRANTS the motion to dismiss the action without prejudice.

I. Legal Standard

A dismissal of an entire class action requires court approval and must be accompanied by a declaration setting forth the facts and stating whether consideration, direct or indirect, has been given for the dismissal. (Cal. Rules of Court, rule 3.770(a).) A court may rule on the request without a hearing. (*Id.*, rule 3.770(b).) The action may be dismissed without notice to the class members if the court finds that the dismissal will not prejudice them. (*Id.*, rule 3.770(c).)

II. Discussion

Here, the request for dismissal complies with California Rules of Court, rule 3.770. It is supported by the declaration of Plaintiff’s counsel, Charles R. Toomajian III, who states that no consideration, direct or indirect, has been or is being provided to Plaintiff or her counsel in connection with the dismissal. (Toomajian Decl., ¶ 3.) The declaration further establishes that Plaintiff has elected not to pursue her claims at this time and has not served the summons or complaint on either defendant. (*Id.*, ¶¶ 4–5.)

The Court finds that the dismissal will not prejudice the putative class members. No class has been certified, and no notice of the pendency of the action has been sent to the putative class. There is also no indication of media coverage or other publicity on which absent

members might have relied. The dismissal is without prejudice and has no binding or dispositive effect on the claims. Based on these facts, the Court finds that notice to the putative class is unnecessary, and the Court exercises its discretion to dispense with it.

III. Conclusion

For the reasons stated, the Court GRANTS Plaintiff's request for dismissal. The action is dismissed without prejudice as to the named Plaintiff and the putative class. The Court will sign the proposed Order of Dismissal submitted. Notice to the putative class is not required. The June 24, 2026 Case Management Conference is VACATED.

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Calendar Lines 6 – 19

Case Name: *Herlinda Estrada et al. v. Chattem Inc. et al.*
Case No.: 25CV483219

This is a complex asbestos personal-injury action. Eleven opposed matters are now before the Court. Three are motions to quash service of summons due to lack of personal jurisdiction. Four are demurrers to the third cause of action for fraud, and four are motions to strike the allegations supporting punitive damages. Having considered the moving papers, the oppositions, and the replies, the Court makes the following rulings.

1. The Court GRANTS the motions to quash brought by Mineral Technologies, Inc. and Specialty Minerals Inc.
2. The Court DENIES the motion to quash brought by PTI Union, LLC.
3. The Court OVERRULES the demurrers brought by CVS Pharmacy, Inc., Longs Drugs Stores California, L.L.C., Walgreen Co., and Walmart Inc.
4. The Court DENIES the motions to strike brought by CVS Pharmacy, Inc., Longs Drugs Stores California, L.L.C., Walgreen Co., and Walmart Inc.

I. Background

Plaintiff Herlinda Estrada has malignant pleural mesothelioma, and she alleges it was caused by cumulative exposure to asbestos in cosmetic talc, including the store-brand talcum powder products sold by four retailer defendants and the talc supplied or processed by other defendants. Her husband sues for loss of consortium. The Court granted Plaintiffs' motion for trial preference and set trial for September 14, 2026. The Court directed that the pleading motions be advanced and heard together so that the pleadings are settled well before trial.

A group of three defendants challenge this court's jurisdiction over them in this action, contending their contacts with the State and their connections to Plaintiffs' claims are too attenuated.

The four demurring retailer defendants challenge the Complaint's third cause of action only. The third cause of action is for fraud and pleads four separate theories: fraudulent misrepresentation; fraudulent concealment; conspiracy to commit fraudulent misrepresentation;